

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Mississippi

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:37:10 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:PRIORITIZATION OF POPULATIONS

Reason(s) for non-compliance:

- The Lead Agency does not allow CCDF enrollment of children experiencing homelessness while the required eligibility documentation is obtained, as required by 98.51(a). (Plan Question 2.3.3a)
- The Lead Agency does not have a grace period for children who are in foster care or children experiencing homelessness to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with immunizations and other health and safety requirements and did not establish the length of the grace period in consultation with the State public health agency, as required by 94.41(a)(1)(i)(C). (Plan Questions 2.3.3bi and 2.3.3bii)

Overall Target Completion Date: 10/01/2024

Action Step Number	Action Step Description	Target Completion Date
1	After consulting with the Mississippi State Department of Health (MSDH), the lead agency will allow children experiencing homelessness a 10-business day grace period to receive documentation . The grace period will begin the date the child's subsidy voucher is approved for services in a child care facility that provides CCDF subsidy assistance.	10/01/2024
2	Families who wish to receive CCDF subsidy assistance may contact the MSDH Office of Immunizations directly during this two week grace period to receive proof of immunizations (i.e., a 121 Immunization Form or 122 Form) once the request has been made to MSDH by the family.	10/01/2024

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as

required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through April 30, 2026.

Overall Target Completion Date: 04/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Waiver for paying prospectively and paying through grants or contracts was submitted to OCC and approved November 22, 2024.	11/22/2024
2	Meet with ITS to discuss system changes needed to shift to paying child care providers prospectively. Discuss time frame for completing system update.	02/28/2025
3	Update Child Care Payment Program policies and procedures to accommodate shift to paying prospectively.	08/31/2025
4	Implement shift to pay providers prospectively on a monthly basis.	04/01/2026

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through April 30, 2026.

Overall Target Completion Date: 04/01/2026

Action Step Number	Action Step Description	Target Completion Date
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1	Waiver for offering child care assistance through grants or contracts was submitted to OCC and approved November 22, 2024.	11/22/2024
2	Explore best options for utilizing grants or contracts to expand services to underserved populations (i.e., infants/toddlers, underserved geographic areas, children with special needs).	05/31/2025
3	Update Child Care Payment Program policies and procedures to include payments through grants or contracts.	09/30/2025
4	Implement providing grants or contracts for direct services to underserved populations (i.e., infants/toddlers, underserved geographic areas, children with special needs).	04/01/2026

HEALTH AND SAFETY:ADMINISTRATION OF MEDICATION

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the administration of medication, consistent with standards for parental consent, for license-exempt centers, license-exempt family child care providers, or license-exempt in-home providers, as required by 98.41(a)(1)(iii). (Plan Questions 5.3.3aiv, 5.3.3av, 5.3.3avi, 5.3.3biv, 5.3.3bv, and 5.3.3bvi)
- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with an enforceable standard for administration of medication consistent with standards for parental consent, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-	05/01/2024

	exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included rules on the administration of medication.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care bi-annually.	03/01/2025

HEALTH AND SAFETY:BUILDING AND PHYSICAL PREMISES SAFETY

Reason(s) for non-compliance:

- The Lead Agency does not have a standard for building and physical premises safety that includes the identification of and protection from bodies of water and vehicular traffic for license-exempt centers, license-exempt family child care providers, or license-exempt in-home providers, as required by 98.41(a)(1)(v). (Plan Questions 5.3.5aiv, 5.3.5av, 5.3.5avi, 5.3.5biv, 5.3.5bv, 5.3.5bvi, 5.3.5civ, 5.3.5cv, and 5.3.5cvi)

- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with an enforceable standard for building and physical premises safety, including the identification of and protection bodies of water and vehicular traffic, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 05/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included rules for the identification of and protection from bodies of water and vehicular traffic	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers,	03/01/2025

	including those previously categorized as license-exempt family child care bi-annually.	
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HEALTH AND SAFETY:CHILD DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency pre-service or orientation training for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, or license-exempt in-home providers on child development does not include all major domains, as required by 98.44(b)(1)(iii). (Plan Question 5.4.1l)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers, or annual inspection for license-exempt centers or license-exempt family child care providers for compliance with pre-service orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1ai, 5.5.1bi, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 05/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024

3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations include requirements for pre-service or orientation training on all domains of child development.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025
6	MSDH will update Regulations Governing Licensure of Child Care Facilities, which are separate rules from Regulations Governing Licensure of Family Child Care (Five or Fewer Children). This update will include requirements for pre-service or orientation training on all domains of child development. The MS State Board of Health will review and approve new regulations.	03/01/2025
7	MSDH staff to be trained on the updated regulations and inspection form in April 2025.	04/30/2025
8	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers using updated regulations and inspection form bi-annually.	05/01/2025

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7i-5.3.7x)
- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers, or an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with an enforceable standard for emergency preparedness and response planning, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Question 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 05/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. Regulations included requirements for emergency preparedness and response planning.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing	12/02/2024

	Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025

HEALTH AND SAFETY:FIRE STANDARDS

Reason(s) for non-compliance:

- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with fire standards, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	02/15/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024

3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included requirements on compliance with fire safety standards.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025

HEALTH AND SAFETY: HANDLING AND STORAGE OF HAZARDOUS MATERIALS AND DISPOSAL OF BIOCONTAMINANTS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the handling and storage of hazardous materials and the appropriate disposal of biocontaminants for license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8aiv, 5.3.8av, 5.3.8avi, 5.3.8biv, 5.3.8bv, and 5.3.8bvi)
- The Lead Agency does not require an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with an enforceable standard for handling and storage of hazardous materials and disposal of biocontaminants, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General	05/01/2024

	opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations include requirements for the handling and storage of hazardous materials and the appropriate disposal of bio-contaminants.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025

HEALTH AND SAFETY: IDENTIFICATION AND REPORTING OF CHILD ABUSE

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the identification and reporting of child abuse for license-exempt centers, license-exempt family child care, and license-

exempt in-home providers, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.11aiv, 5.3.11av, 5.3.11avi, 5.3.11biv, 5.3.11bv, and 5.3.11bvi)

- The Lead Agency does not require an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with an enforceable standard for identification and reporting of child abuse, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations include requirements around the identification and reporting of child abuse.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024

5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025
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HEALTH AND SAFETY:INSPECTION OF IN-HOME CARE

Reason(s) for non-compliance:

- The Lead Agency does not require an annual inspection for license-exempt in-home providers for compliance with enforceable health and safety standards, as required by 98.42(b)(2)(iv)(B). (Plan Question 5.5.3a)

Overall Target Completion Date: 11/15/2024

Action Step Number	Action Step Description	Target Completion Date
1	Mississippi does not currently have any license-exempt in-home providers participating in CCDF. Should any in-home providers apply to participate in CCDF subsidy, the provider is required to complete all health and safety training topics bi-annually.	11/15/2024
2	The home of the child receiving subsidy assistance will be inspected annually by the Mississippi State Department of Health using the Regulations Governing Licensure of Family Child Care (Five or Fewer Children) and the corresponding inspection form which checks for compliance with all 12 required health and safety topic areas.	11/15/2024

HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not require an annual inspection for license-exempt centers and license-exempt family child care providers, for compliance with ongoing training requirements, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations include annual, ongoing training regarding Health and Safety requirements. Child care providers participating in CCDF must participate in the CCDF Health and Safety training bi-annually.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers,	03/01/2025

	including those previously categorized as license-exempt family child care, bi-annually.	
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HEALTH AND SAFETY:PEDIATRIC FIRST AID AND PEDIATRIC CPR

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for pediatric first aid or pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care, and license-exempt in-home providers, as required by 98.41(a)(1)(x). (Plan Questions 5.3.10ai, 5.3.10aai, 5.3.10aiv, 5.3.10av, 5.3.10avi, 5.3.10bi, 5.3.10bii, 5.3.10biv, and 5.3.10bv, and 5.3.10bvi)
- The Lead Agency does not require pre-service or orientation training on pediatric first aid and pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers, or an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with a standard for pediatric first aid and pediatric CPR and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 05/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024

2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included requirements on pre-service and orientation training on pediatric first aid and pediatric CPR	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025
6	MSDH will update Regulations Governing Licensure of Child Care Facilities, which are separate rules from Regulations Governing Licensure of Family Child Care (Five or Fewer Children). This update will include detailed standards addressing pediatric first aid and pediatric CPR training. These standards outline pre-service training requirements for staff regarding pediatric first aid and pediatric CPR requirements. The MS State Board of Health will review and approve new regulations.	03/01/2025
7	MSDH staff to be trained on the updated regulations and inspection form in April 2025.	04/30/2025
8	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers using updated regulations and inspection form bi-annually.	05/01/2025

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, or out-of-school programs, as required by 98.33(a)(4) and 98.33(a)(4)(ii). (Plan Questions 5.5.4 and 5.5.4a(ii)). Please note the Lead Agency has an approved waiver for portions of this requirement through April 30, 2026.
- The Lead Agency monitoring and inspection reports do not contain all the required elements, specifically information on corrective action taken by the state and child care provider for all provider types, as required by 98.33(a)(4). (Plan Question 5.5.4b)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Waiver for posting full inspection reports was submitted to OCC and approved November 22, 2024.	11/22/2024
2	The Mississippi State Department of Health updated the monitoring and inspection reports that are posted online based on technical assistance guidance received. MSDH will seek further guidance on whether the inspection reports meet all requirements (i.e., plain language vs. plain language summary.	09/30/2025

HEALTH AND SAFETY:PRECAUTIONS IN TRANSPORTING CHILDREN

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for precautions in transporting children for license-exempt centers, license-exempt family child care providers, or license-exempt in-home providers, as required by 98.41(a)(1)(ix). (Plan Question 5.3.9iv,

5.3.9v, and 5.3.9vi)

- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with an enforceable standard for precautions in transporting children, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included rules for precautions in transporting children.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-	03/01/2025

	exempt family child care, bi-annually.	
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HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention and control of infectious diseases (including immunizations) for all license-exempt centers, license-exempt family child care providers, or license-exempt in-home child care providers, as required by 98.41(a)(1)(i). (Plan Questions 5.3.1aiv, 5.3.1av, and 5.3.1avi)
- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care for compliance with an enforceable standard for prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	02/15/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of	11/15/2024

	Health. These regulations included rules for the prevention and control of infectious diseases (including immunizations).	
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025

HEALTH AND SAFETY:PREVENTION AND RESPONSE TO EMERGENCIES FROM FOOD AND ALLERGIC REACTIONS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of or response to emergencies due to food and allergic reactions for license-exempt centers, license-exempt family child care, or license-exempt in-home providers, as required by 98.41(a)(1)(iv). (Plan Questions 5.3.4aiv, 5.3.4av, 5.3.4avi, 5.3.4biv, 5.3.4bv, and 5.3.4bvi)
- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with an enforceable standard for prevention and response to emergencies from food and allergic reactions, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-	05/01/2024

	exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included rules for the prevention of or response to emergencies due to food and allergic reactions.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025

HEALTH AND SAFETY: RATIOS AND GROUP SIZE FOR CCDF PROVIDERS

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a group size standard, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 05/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	MSDH will update inspection form to include compliance with the group size standards for all age categories as outlined in the Regulations Governing Licensure of Child Care Facilities, Subchapter 8: Staffing, Rule 1.8.3 Grouping.	03/01/2025
2	MSDH staff to be trained on the updated inspection form in April 2025.	04/30/2025
3	MSDH Child Care Licensure will begin monitoring all licensed centers and licensed family child care providers using the updated inspection form bi-annually.	05/01/2025

HEALTH AND SAFETY:SUDDEN INFANT DEATH SYNDROME AND SAFE SLEEP

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of sudden infant death syndrome and use of safe sleeping practices for license-exempt centers, license-exempt family child care, or license-exempt in-home providers, as required by 98.41(a)(1)(ii). (Plan Questions 5.3.2iv, 5.3.2v, and 5.3.2vi)
- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with a standard for the prevention of sudden infant death syndrome and safe sleep practices, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.2ai and 5.5.2bi)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until	05/01/2024

	all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included rules for the prevention of sudden infant death syndrome and use of safe sleeping practices.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025

HEALTH AND SAFETY:PREVENTION OF SHAKEN BABY SYNDROME, ABUSIVE HEAD TRAUMA, AND CHILD MALTREATMENT

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of shaken baby syndrome, abusive head trauma, and prevention of child maltreatment for license-

exempt centers, license-exempt family child care, or license-exempt in-home providers, as required by 98.41(a)(1)(vi). (Plan Questions 5.3.6aiv, 5.3.6av, 5.3.6avi, 5.3.6biv, 5.3.6bv, and 5.3.6bvi)

- The Lead Agency does not require pre-service or orientation training on prevention of shaken baby syndrome, abusive head trauma, and child maltreatment for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1f)

- The Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with a standard for the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(ii). Additionally, the Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to the prevention of shaken baby syndrome, abusive head trauma, and child maltreatment, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 05/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included requirements on the	11/15/2024

	pre-service/orientation training and the prevention of shaken baby syndrome, abusive head trauma, and prevention of child maltreatment.	
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025
6	MSDH will update update Regulations Governing Licensure of Child Care Facilities, which are separate rules from Regulations Governing Licensure of Family Child Care (Five or Fewer Children). This update will include regulations for licensed centers to incorporate detailed standards addressing pre-service training requirements on shaken baby syndrome for child care providers. This topic will be included in the required Health and Safety training. The MS State Board of Health will review and approve new regulations.	03/01/2025
7	MSDH staff to be trained on the updated regulations and inspection form in April 2025.	04/30/2025
8	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers using updated regulations and inspection form bi-annually.	05/01/2025

COMPREHENSIVE BACKGROUND CHECK:BACKGROUND CHECK PROCESSES

Reason(s) for non-compliance:

- The Lead Agency has not established a direct URL/website link that contains instructions on how child care providers and other States should initiate background check requests for prospective and current child care staff members, as required by 98.43(g). (Plan Question 5.7.15a)

Overall Target Completion Date: 12/13/2024

Action Step Number	Action Step Description	Target Completion Date
1	Information for Comprehensive Background check updated and placed on MS State Department of Health (MSDH) website. healthysms.com/page/30,0,206.html healthysms.com/page/resources/20721.pdf healthysms.com/msdhsite/_static/resources/18347.pdf	09/30/2024
2	Instructions for requesting a MS background check or a background check from another state uploaded to website. healthysms.com/msdhsite/_static/resources/18346.pdf	09/30/2024
3	An updated link was placed on Lead Agency Website directing applicants to MSDH for information regarding Comprehensive Background check. https://www.mdhs.ms.gov/eccd/	12/13/2024

COMPREHENSIVE BACKGROUND CHECK:NATIONAL NAME-BASED

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct NCIC NSOR name-based background checks for existing child care staff members (including prospective staff members), as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.3a and 5.7.3b)
- The Lead Agency does not require and conduct NCIC NSOR name-based checks for all individuals age 18 or older who reside in an existing family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c)

Overall Target Completion Date: 08/01/2029

Action Step Number	Action Step Description	Target Completion Date
1	The MS State Department of Health (MSDH) implemented NCIC NSOR check for prospective child care employees.	08/01/2024
2	Full implementation of NCIC NSOR background checks for existing employees will be fully implemented for all existing child care employees by August 1, 2029. Current child care employees are cleared for a period of five years. Compliance with this will require all current child care employees to receive and pay for a new NCIC NSOR check. All current child care employees as of August 1, 2024 will have received the NCIC NSOR check by August 1, 2029.	08/01/2029
3	MSDH has added information to the public website describing the policies and procedures related to MSDH fingerprint-based background checks to include the NCIC NSOR. MSDH background check was updated to include the NCIC NSOR in prospective employees. Related to financial burden of requesting background check for existing employees, MSDH will be fully compliant with the NCIC NSOR rule in August 2029. https://msdh.ms.gov/page/30,0,206.html healthysms.com/msdhsite/_static/resources/18347.pdf	08/01/2029

**QUALITY IMPROVEMENT AND SUPPORT FOR CHILD CARE
WORKFORCE:PROFESSIONAL DEVELOPMENT**

Reason(s) for non-compliance:

- The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for license-exempt child care centers, license-exempt family child care, and license-exempt in-home providers, as required by 98.44(b)(2). (Plan Questions 6.3.1b, 6.3.1d, and 6.3.1f)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	License-exempt centers, including family child care providers, were notified per Attorney General opinion they would be ineligible for subsidy until all licensing requirements were met. License-exempt centers, not including family child care providers, were given the deadline of May 1, 2024 to meet all licensing requirements as laid out in the existing Regulations Governing Licensure of Child Care Facilities. License exempt centers, not including family child care providers, met the May 1, 2024 deadline and are being monitored bi-annually.	05/01/2024
2	MS State Department of Health (MSDH) Staff trained on new Family Child Care regulations and monitoring tool.	10/29/2024
3	MSDH Regulations Governing Licensure of Family Child Care (Five or Fewer Children) Regulations approved by the MS State Board of Health. These regulations included a requirement that all child care providers receive a minimum number of 15 contact/ongoing professional development training annually.	11/15/2024
4	The Lead Agency (MS Department of Human Services) and MSDH sent memo out to providers informing of MSDH Regulations Governing Licensure of Child Care Family Homes for 5 and Fewer and the new provider application that would be available on December 2, 2024.	12/02/2024
5	MSDH Child Care Licensure will begin monitoring all CCDF participating child care providers, including those previously categorized as license-exempt family child care, bi-annually.	03/01/2025

PROGRAM INTEGRITY: EFFECTIVE FISCAL MANAGEMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency did not sufficiently describe fiscal controls that allow for tracking of funds to establish allowable expenditures, as required by 98.67(c)(2). (Plan Question 10.1.2b)

Overall Target Completion Date: 10/01/2024

Action Step Number	Action Step Description	Target Completion Date
1	The MDHS Division of Early Childhood Care & Development (DECCD), which is the division that oversees the CCDF program, has a finance team (two business managers and a finance director) that solely oversee CCDF fiscal spending and activities. This team utilizes both Smartsheet reporting functions and the and the Mississippi Accountability System for Government Information and Collaboration (MAGIC) to to track spending for all CCDF activities. To account for and track CCDF spending activities a code is assigned to the transaction. Codes are broken down by CCDF fiscal year and spending activity (i.e., direct services, indirect services, quality improvement, infant/toddler, administrative costs, etc.) A code is assigned to each invoice when it is processed. That code determines which year and category that transaction will fall under. Transactions are recorded in Smartsheet and are reconciled each month against the MAGIC CCDF ledger to make sure every transaction that has been approved is accounted for properly.	10/01/2024
2	To ensure accuracy of spending and reporting within each CCDF activity category, the DECCD Finance Director reviews and compares the MAGIC monthly transaction report/ledger with each transaction that is recorded on the DECCD CCDF Smartsheet. Throughout each month as invoices are coded and approved to be paid. The	10/01/2024

	Finance Director flags any expenses on the MAGIC ledger that do not match the Smartsheet report. Each month, the DECCD team meets with the lead agency's larger Budgets and Accounting Division leadership to discuss mismatched transactions on the report and works with the larger division to correct any discrepancies.	
3	The lead agency utilizes subgrantee agreements with quality partners to perform some CCDF quality improvement activities. Quality partners submit reimbursement claims monthly that must be reviewed and approved in a timely manner. Our Business managers receive notification when a claim has been submitted through a Smartsheet program. The lead agency follows a five business day time frame to review the claims and process them for payment. DECCD business managers review claims for amounts and spending categories and compare against each subgrantee contract and budget. The team also reviews all supporting documentation to guarantee funds are spent appropriately. If any errors are found, the business team will notify the respective quality partner through the CCDF Smartsheet that corrections must be made and the claim must be resubmitted. Once everything is correct, the DECCD Division Director/CCDF Administrator will review, sign, and approve the claim to be paid. This claim is then sent to the subgrantee analyst and manager in the lead agency's Budgets and Accounting division to process the claim through MAGIC for payment.	10/01/2024